

SENATE FLOOR VERSION

February 17, 2025

SENATE BILL NO. 522

By: Coleman

An Act relating to medical marijuana; amending Section 1, Chapter 321, O.S.L. 2024 (63 O.S. Supp. 2024, Section 427.29), which relates to the Oklahoma Medical Marijuana Authority Executive Advisory Council; directing Advisory Council to establish certain task force; requiring certain final report; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 1, Chapter 321, O.S.L. 2024 (63 O.S. Supp. 2024, Section 427.29), is amended to read as follows:

Section 427.29. A. There is hereby created the Oklahoma Medical Marijuana Authority Executive Advisory Council.

B. The Oklahoma Medical Marijuana Authority Executive Advisory Council shall consist of the following members, and all appointees shall serve their terms at the pleasure of the appointing authority and may be removed or replaced without cause:

1. One member appointed by the Governor to represent all citizens of this state;

1 2. One member appointed by the Speaker of the Oklahoma House of
2 Representatives, who shall be a citizen from a county with a
3 population under twenty-five thousand (25,000) persons, as
4 determined by the latest Federal Decennial Census;

5 3. One member appointed by the President Pro Tempore of the
6 Oklahoma State Senate, who shall be a citizen from a municipality
7 with a population in excess of seventy-five thousand (75,000)
8 persons, as determined by the latest Federal Decennial Census;

9 4. One member appointed by the Speaker of the Oklahoma House of
10 Representatives, who is a current medical marijuana business license
11 holder;

12 5. One member appointed by the President Pro Tempore of the
13 Oklahoma State Senate, who is a current medical marijuana business
14 license holder; and

15 6. One member appointed by the Governor, who holds a medical
16 marijuana patient license.

17 C. The Executive Director of the Oklahoma Medical Marijuana
18 Authority shall chair the Advisory Council and provide staff and
19 administrative support to the Advisory Council.

20 D. The Advisory Council shall select a co-chair from the
21 membership of the Advisory Council.

22 E. Each member of the Advisory Council shall serve a term of
23 four (4) years from the date of appointment. Members of the
24 Advisory Council shall not serve more than two consecutive terms.

1 F. A majority of the members of the Advisory Council shall
2 constitute a quorum for the transaction of business and for taking
3 any official actions. Official actions by the Advisory Council
4 shall have a favorable vote by a majority of the members present.

5 G. Appointed members who serve on the Advisory Council shall be
6 exempt from dual-office-holding prohibitions pursuant to Section 6
7 of Title 51 of the Oklahoma Statutes.

8 H. The Advisory Council may advise the Authority of recommended
9 changes to state policy, rules, or statutes.

10 I. The Advisory Council shall organize a task force to research
11 and provide recommendations on purchase and possession limits for
12 licensed medical marijuana patients. This task force shall consult
13 with various professionals and stakeholders including, but not
14 limited to, physicians, the State Board of Medical Licensure and
15 Supervision, the State Board of Osteopathic Examiners, the Board of
16 Podiatric Medical Examiners, licensed medical marijuana patients,
17 veterans, and licensed medical marijuana business owners. The task
18 force may meet separately from the Advisory Council and as often as
19 necessary to conduct business. The task force shall submit a final
20 report of its findings and recommendations to the Authority by
21 November 1, 2026.

22 J. The Advisory Council shall prepare and issue a report of its
23 findings and recommendations electronically to the Governor,
24 President Pro Tempore of the Senate, and Speaker of the House by

1 November 1, 2025, and no later than November 1 of each year
2 thereafter.

3 ~~J.~~ K. Members appointed pursuant to subsection B of this
4 section shall serve without compensation but shall be reimbursed for
5 expenses incurred in the performance of their duties in accordance
6 with the State Travel Reimbursement Act.

7 ~~K.~~ L. The Oklahoma Medical Marijuana Authority Executive
8 Advisory Council shall meet as often as necessary to conduct
9 business but shall meet not less than four times a year, with an
10 organizational meeting to be held prior to January 1, 2025.

11 ~~L.~~ M. Any vacancy occurring on the Oklahoma Medical Marijuana
12 Authority Executive Advisory Council shall be filled for the
13 unexpired term of office in the same manner as provided for in
14 subsection B of this section.

15 ~~M.~~ N. The Advisory Council shall act in accordance with the
16 provisions of the Oklahoma Open Meeting Act, the Oklahoma Open
17 Records Act, and the Administrative Procedures Act.

18 SECTION 2. This act shall become effective November 1, 2025.

19 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
20 February 17, 2025 - DO PASS
21
22
23
24